2021-04-02_Email from FDA - Final Decision and Deprioritization

from: Walia, Vijay <Vijay.Walia@fda.hhs.gov>
to: "randy@floodlamp.bio" <randy@floodlamp.bio>
cc: "Caposino, Paula" <Paula.Caposino@fda.hhs.gov>,
"St. Pierre, Don J." <don.st.pierre@fda.hhs.gov>,
"Roth, Kristian" <Kristian.Roth@fda.hhs.gov>,
oir-policy <CDRH-OIR-POPS@fda.hhs.gov>,
"EUA210252@docs.fda.gov" <EUA210252@docs.fda.gov>
date: Apr 2, 2021, 1:18 PM
subject: Final Decision for EUA210252 Request – letter attached

Dear Randall J. True,

Please see attached letter regarding your EUA request, EUA210252. This is the final decision on your EUA request, and your EUA is now closed.

The reason for our decision is that we are currently in a different phase of the pandemic with respect to tests than we were previously, where many COVID-19 tests are now authorized. We prioritize review of EUA requests for tests taking into account a variety of factors, as discussed in the Emergency Use Authorization of Medical Products and Related Authorities Guidance, such as the public health need for the product and the availability of the product. We have, for example, prioritized review of EUA requests for tests where authorization would increase testing accessibility (e.g., point of care (POC) tests, home collection tests, and at-home tests) or would significantly increase testing capacity (e.g., high-throughput tests).

Regarding your request, FDA determined that review of your EUA request is not a priority because, for example, authorization of the test would have relatively limited impact on testing accessibility or testing capacity in the United States.

For additional information on FDA's priorities with respect to review of EUA requests for COVID-19 tests, see our website's FAQs on Testing for SARS-CoV-2.

Please confirm receipt of this email and attached letter.

Thank you,

Best Regards,
Vijay

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Scientific Reviewer
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ATTACHMENT: EUA210252.IVD Deprioritization Letter_Decline to Review - FINAL (DJS).pdf
(text from attached pdf copied below - Same Email and Attachment for EUA210254)

April 2, 2021

Randall J. True
o/b/o FloodLAMP Biotechnologies, a DE Public Benefit Corporation
4860 Alpine Rd.
Portola Valley, CA 94028
Re: EUA210252
Dear Randall J. True:

This letter is in response to your request for an Emergency Use Authorization (EUA) for the FloodLAMP QuickColor COVID-19 Test, intended for the following use(s): for the qualitative detection of RNA from SARS-CoV-2 in upper respiratory specimens from individuals suspected of COVID-19 by their healthcare provider and from individuals without symptoms or other epidemiological reasons to suspect COVID-19 infection, when tested at a weekly interval with no more than 9 days between tests. Given the volume of EUA requests the Agency has received, FDA is prioritizing review of EUA requests for tests, taking into account a variety of factors such as the public health need for the product and the availability of the product.(1) Based on your request, FDA has determined that review of your EUA request is not a priority(2) because, for example, authorization of the test would have relatively limited impact on testing accessibility or testing capacity. FDA therefore declines to review the EUA request for the product at this time.

This test has not been authorized to be distributed or used as proposed. FDA is committed to doing everything possible to help combat the COVID-19 outbreak and appreciates your efforts in this matter.

Sincerely,
Donald J. St.Pierre
Deputy Director, New Product Evaluation
OHT7:Office of In Vitro Diagnostics and
Radiological Health
Office of Product Evaluation and Quality
Center for Devices and Radiological Health
Food and Drug Administration

(1) For example, the agency has prioritized review of EUA requests for tests where authorization would increase testing accessibility (e.g., point of care (POC) tests, home collection tests, at-home tests) or would significantly increase testing
capacity (e.g., tests that reduce reliance on test supplies, high-throughput, widely distributed tests). See https://www.fda.gov/medical-devices/coronavirus-covid-19-and-medical-devices/covid-19-test-development-and-review-faqs-testing-sars-cov-2#priorities.
(2) FDA's current thinking on prioritization of EUA requests is explained in FDA's guidance, "Emergency Use Authorization for Medical Products and Related Authorities," available at https://www.fda.gov/media/97321/download.